ours p.1 (red) over filed p.1 (blue)

Robert T. Kugler (MN #0194116)
Edwin H. Caldie (MN #0388930)
Andrew J. Glasnovich (MN #0398366)
STINSON LEONARD STREET LLP
50 S 6th Street, Suite 2600
Minneapolis, MN 55402
Tel: (612) 335-1500
Robert.Kugler@stinson.com
Ed.Caldie@stinson.com
Drew.Glasnovich@stinson.com
Counsel for the Official Committee of Unsecured Creditors
Counsel for the Official Committee of Unsecured Creditors

IN THE DISTRICT COURT OF GUAM
IN THE DISTRICT COURT OF GUAM
TERRITORY OF GUAM
TERRITORY OF GUAM
BANKRUPTCY DIVISION
BANKRUPTCY DIVISION

In re: ARCHBISHOP OF AGAÑA, a Corporation Sole, Debtor.	Chapter 11 Bankruptcy Case No. 19-00010
In re: ARCHBISHOP OF AGAÑA, a Corporation Sole, Debtor.	Chapter 11 Bankruptcy Case No. 19-00010 Adversary Proceeding Adv. Proc. No. 19-00001 **COMPLAINT (DECLARATORY JUDGMENT REGARDING PROPERTY OF THE ESTATE)**
OFFICIAL COMMITTEE OF UNSECURED CREDITORS, Plaintiff, v. ARCHBISHOP OF AGAÑA, Defendant.	OFFICIAL COMMITTEE OF UNSECURED CREDITORS, Plaintiff, v. ARCHBISHOP OF AGAÑA, Defendant.
	Adversary Proceeding Case No. **COMPLAINT (DECLARATORY JUDGMENT REGARDING PROPERTY OF THE ESTATE)**

The Official Committee of Unsecured Creditors ("Committee") alleges as follows upon knowledge with respect to itself, and upon information and belief as to all other matters:

THE PARTIES

1. The Committee is the Official Committee of Unsecured Creditors appointed by the United States Trustee pursuant to 11 U.S.C. § 1102(a)(1).

2. The Official Committee of Unsecured Creditors ("Committee") alleges as follows upon information and belief, the Archbishop of Agana, a Corporation Sole ("Debtor"), organized under the laws of Guam, is the debtor in the above-captioned chapter 11 bankruptcy case.

THE PARTIES

1. The Committee is the Official Committee of Unsecured Creditors appointed by the United States Trustee pursuant to 11 U.S.C. § 1102(a)(1).

JURISDICTION AND VENUE

3. This Court has jurisdiction over this adversary proceeding pursuant to under 28 U.S.C. §§ 157(b) and 1334(b).

2. Upon information and belief, the Archbishop of Agana, a Corporation Sole ("Debtor"), organized under the laws of Guam, is the debtor in the above-captioned chapter 11 bankruptcy case.

4. This proceeding is a core proceeding under 28 U.S.C. § 157(b)(2)(A) and (O).

JURISDICTION AND VENUE

5. Venue is proper in this Court pursuant to 28 U.S.C. § 1409(a) because this is a core proceeding arising in a bankruptcy case pending in this district.

3. This Court has jurisdiction over this adversary proceeding pursuant to under 28 U.S.C. §§ 157(b) and 1334(b).

FACTUAL BACKGROUND

4. This proceeding is a core proceeding under 28 U.S.C. § 157(b)(2)(A) and (O).

6. On January 16, 2019 (the "Petition Date"), the Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the United States Code.

5. Venue is proper in this Court pursuant to 28 U.S.C. § 1409(a) because this is a core proceeding arising in a bankruptcy case pending in this district.

7. The Debtor's voluntary petition filing created an estate, as defined by 11 U.S.C. § 541(a), including all of the Debtor's legal or equitable interests in property as of the commencement of the case, and any interest in property that the estate acquires after the commencement of the case.

[The Committee does not consent to the entry of final orders or judgment by the bankruptcy court. Placeholder: the filed complaint does not state a position; counsel to complete under Fed. R. Bankr. P. 7008(a).]

FACTUAL BACKGROUND

8. On the Petition Date, pursuant to 11 U.S.C. § 521 and Bankruptcy Rule 1007(b), the Debtor also filed its Statement of Financial Affairs ("Statement") and its Schedules of Assets and Liabilities ("Schedules").

6. On January 16, 2019 (the "Petition Date"), the Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the United States Code.

7. The Debtor's voluntary petition filing created an estate, as defined by 11 U.S.C. § 541(a), including all of the Debtor's legal or equitable interests in property as of the commencement of the case, and any interest in property that the estate acquires after the commencement of the case.

9. In the Statement, Part 11, the Debtor attached Exhibits 8, 9, and 10 listing property owned by the Debtor but allegedly held "in Trust for Parishes and Schools." Attached as Exhibit A, and incorporated herein, is a true and correct copy of the Statement, Exhibits 8, 9, and 10. All the property listed on Exhibit A shall be referred to together as "Disputed Property."

8. On the Petition Date, pursuant to 11 U.S.C. § 521 and Bankruptcy Rule 1007(b), the Debtor also filed its Statement of Financial Affairs ("Statement") and its Schedules of Assets and Liabilities ("Schedules").

10. Upon information and belief, the Committee alleges that the Disputed Property belongs to the Debtor and should be scheduled as property of the estate.

11. Upon information and belief, the Committee alleges that the real property identified on Exhibit A ("Disputed Real Property") is in fact under the Debtor's complete control and domination, and that the Debtor owns the Disputed Real Property.

12. Upon information and belief, the Committee alleges that all of the personal property identified on Exhibit A ("Disputed Personal Property") is in fact under the Debtor's complete control and domination.

13. The Debtor has not scheduled the Disputed Property as assets of the estate.

14. Therefore, an actual controversy exists concerning whether the Disputed Property are assets of the estate.

CAUSE OF ACTION
(Declaratory Relief)

15. The Committee repeats and realleges each of the allegations contained in paragraphs 1 through 14.

16. In the Statement and Schedule, the Debtor did not include the Disputed Real Property and Disputed Personal Property as property of the estate.

17. The Committee contends that the Disputed Property is, in fact, property of the Debtor's estate free and clear of the interests of any other person or entity.

18. An actual controversy exists with respect to the interests of the estate in the Disputed Property.

19. Therefore, the Committee respectfully seeks an order of this Court declaring that the Disputed Property is property of the estate.

WHEREFORE, the Committee prays for:

(a) A declaratory judgment that the Disputed Property is property of the estate free of the interests of any other person or entity; and

(b) Such other and further relief as is just and equitable.

RESPECTFULLY SUBMITTED this 5th day of April, 2019.

STINSON LEONARD STREET LLP

/s/ Robert T. Kugler

Robert T. Kugler

WHEREFORE, the Committee prays for:

(a) A declaratory judgment that the Disputed Property is property of the estate free of the interests of any other person or entity; and

(b) Such other and further relief as is just and equitable.

RESPECTFULLY SUBMITTED this 5th day of April, 2019.

STINSON LEONARD STREET LLP

/s/ Robert T. Kugler

Robert T. Kugler